



**PARLIAMENT OF THE DEMOCRATIC
SOCIALIST REPUBLIC OF
SRI LANKA**

**REGGIE RANATUNGA EDUCATIONAL
SCHOLARSHIP FUND (INCORPORATION)
ACT, No. 28 OF 2000**

[Certified on 19th July, 2000]

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*Reggie Ranatunga Educational Scholarship Fund
(Incorporation) Act, No. 28 of 2000*

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L.D.—O. 25/97.

AN ACT TO INCORPORATE THE REGGIE RANATUNGA
EDUCATIONAL SCHOLARSHIP FUND

WHEREAS an Association called and known as the “Reggie Ranatunga Educational Scholarship Fund” has heretofore been formed for the purpose of effectually carrying out its objects and transacting all matters connected with the said Association according to the rules agreed to by its members :

Preamble.

AND WHEREAS the said Association has heretofore successfully carried out and transacted the several objects and matters for which it was formed and has applied to be incorporated and it will be for the public advantage to grant the said application :

BE it therefore enacted by the Parliament of the Democratic Socialist Republic of Sri Lanka as follows :—

1. This Act may be cited as the Reggie Ranatunga Educational Scholarship Fund (Incorporation) Act, No. 28 of 2000.

Short title.

2. From and after the date of commencement of this Act, such and so many persons as now are members of the Reggie Ranatunga Educational Scholarship Fund (hereinafter referred to as the “Fund”) or shall hereafter be admitted members of the Corporation hereby constituted, shall be a body corporate (hereinafter referred to as the “Corporation”) with perpetual succession, under the name and style of “Reggie Ranatunga Educational Scholarship Fund” and by that name may sue and be sued in all courts, with full power and authority to have and use a common seal and to alter the same at its pleasure.

Incorporation of
the Reggie
Ranatunga
Educational
Scholarship Fund.

3. The general objects for which the Corporation is constituted are hereby declared to be—

General objects of
the Corporation.

- (a) to formulate and implement, schemes to promote educational, health and social welfare activities ;

2 *Reggie Ranatunga Educational Scholarship Fund
(Incorporation) Act, No. 28 of 2000*

- (b) to grant scholarships, bursaries, prizes, donations, financial aid and assistance in other forms for the education of poor children ;
- (c) to promote welfare activities for the benefit of children, women and orphans;
- (d) to promote mutual understanding and co-operation among people, irrespective of race and religion;
- (e) to establish and maintain projects for the protection, management and conservation of the environment;
- (f) to establish and maintain libraries, to subscribe for and issue books, journals, souvenirs and periodicals;
- (g) to create an awareness among youth, of the cultural values of Sri Lanka;
- (h) to afford children in indigent circumstances an opportunity to prepare for, to enter upon or to be engaged in, a trade, occupation or service and to provide them with education, training and other facilities;
- (i) to collaborate with any other institution, organization, whether foreign or local, having objects similar to those of the Corporation;
- (j) to promote physical training and sports activities;
- (k) to organize and conduct, conferences, workshops, group studies and lectures in furtherance of the objects of the Corporation;
- (l) to strive towards the economic, social and cultural upliftment of the residents ; and
- (m) to do such other things as may be necessary for, conducive or incidental to the attainment of all or any of the aforesaid objects.

Reggie Ranatunga Educational Scholarship Fund 3
(Incorporation) Act, No. 28 of 2000

4. Subject to the provisions of this Act, and any other written law, the Corporation shall have the power to do, perform and execute all such acts, matters and things whatsoever as are necessary or desirable for the furtherance of its objects or any one of them, including the power to open, operate and close bank accounts, to borrow or raise moneys with or without security, to receive or collect grants or donations, to invest its funds, to erect any building or structure on any land held by the Corporation, and to engage, employ and dismiss, officers and servants required for the carrying out of the objects of the Corporation.

General
powers of the
Corporation.

5. (1) The affairs of the Corporation shall, subject to the rules in force for the time being of the Corporation, be administered by a Board of Management elected in accordance with the rules of the Corporation.

Management of
the affairs of the
Corporation.

(2) The first Board of Management of the Corporation shall be the Board of Management of the Fund holding office on the day immediately preceding the date of commencement of this Act.

6. (1) It shall be lawful for the Corporation, from time to time, at any general meeting and by the votes of not less than two-thirds of the members present and voting, to make rules, not inconsistent with the provisions of this Act or any other written law, for the admission, withdrawal or expulsion of members, the election of the Board of Management, for the conduct of the duties of the office bearers, agents, officers and servants of the Corporation, for the procedure to be followed in the transaction of business by the Corporation and the Board of Management and generally, for the management of the affairs of the Corporation and the accomplishment of its objects. Such rules when made may at a like meeting and in like manner, be altered, added to, amended or rescinded.

Rules of the
Corporation.

(2) The members of the Corporation shall be subject to the rules of the Corporation.

4 *Reggie Ranatunga Educational Scholarship Fund*
 (Incorporation) Act, No. 28 of 2000

Fund of the
Corporation.

7. All moneys received by way of subscriptions, contributions, fees or grants, borrowings, gifts, bequests, devises, donations for, and on account of, and for the purposes of, the Corporation shall be deposited to the credit of the Corporation in one or more banks as the Board of Management shall determine.

Accounts and
Audits.

8. (1) The Board of Management shall cause proper books of accounts to be kept of the income and expenditure, assets and liabilities and all other transactions of the Corporation.

(2) The accounts of the Corporation shall be audited annually by a qualified auditor as defined in Article 154(8) of the Constitution appointed by the Board of Management.

Corporation may
hold property
movable and
immovable.

9. The Corporation shall be capable in law to take and hold any property, movable or immovable, which may become vested in it by virtue of any purchase, grant, gift, testamentary disposition or otherwise and all such property shall be held by the Corporation for the purposes of this Act and subject to the rules of the Corporation, with full power to sell, mortgage, lease, exchange or otherwise dispose of the same.

Debts due by and
payable to the
Fund.

10. All debts and liabilities of the Fund existing on the day preceding the date of commencement of this Act, shall be paid and discharged by the Corporation and all debts due to, and subscriptions and contributions payable to, the Fund on that day shall be paid to the Corporation for the purposes of this Act.

Limitation of
liability of
members.

11. No member of the Corporation shall, for the purpose of discharging the debts and liabilities of the Corporation, or for any other purpose, be liable to make any contribution exceeding the amount of such membership fees as may be due from him to the Corporation.

Reggie Ranatunga Educational Scholarship Fund 5
(Incorporation) Act, No. 28 of 2000

12. If upon the dissolution of the Corporation there remains after the satisfaction of all its debts and liabilities any property whatsoever, such property shall not be distributed among the members of the Corporation, but shall be given or transferred to some other Institution or Institutions having objects similar to those of the Corporation, and which is, or are, by its or their rules prohibited from distributing any income or property among its members.

Property
remaining on
dissolution.

13. The seal of the Corporation shall not be affixed to any instrument whatsoever except in the presence of the President and the Vice President or the Treasurer of the Corporation, who shall sign their names to the instrument in token of their presence, and such signing shall be independent of the signing of any person as a witness.

How the seal of
the Corporation is
to be affixed.

14. Nothing in this Act contained shall prejudice or affect the rights of the Republic, or any body politic or corporate, or any other person except such as are mentioned in this Act and those claiming by, from, or under, them.

Saving of the
rights of the
Republic and
others.

15. In the event of any inconsistency between the Sinhala and Tamil texts of this Act, the Sinhala text shall prevail.

Sinhala text
to prevail in case
of inconsistency.

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